IN THE SUPREME COURT OF TENNESSEE

JOSE MARCUS PERRUSQUIA, W2023-00293-SC-R11-CV

Petitioner – Appellant,

v.

FLOYD BONNER, JR. AND
STEVE MULROY,

Respondents –
Appellees.

On Application from the Tennessee Court of Appeals, Case No. W2023-00293-COA-R3-CV, and from the Shelby County Chancery Court, Case No. CH-22-0820-3

PETITIONER-APPELLANT'S APPLICATION FOR PERMISSION TO APPEAL UNDER TENNESSEE RULE OF APPELLATE PROCEDURE 11

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STATEMENT OF THE ISSUES PRESENTED FOR REVIEW

1. Is the Shelby County Sheriff's Office (the "Sheriff") required by the Tennessee Public Records Act ("TPRA"), including Tenn. Code Ann. § 10-7-504(m)(1)(E), to produce a video recording depicting an act or incident involving public safety or security or possible criminal activity in the Shelby County Jail Sally Port?

Suggested answer: Yes.

2. Did the Court of Appeals err when it affirmed that the Shelby County District Attorney General's Office (the "DA") was not a records custodian under Tenn. Code Ann. § 10-7-503(a)(1)(C) for records it receives from other governmental entities, including the requested video, and should the Court of Appeals have found a prospective injunction requiring the DA to keep all records it receives and reviews in making its charging decisions proper? Suggested answer: Yes.

3. Did the Sheriff and the DA knowingly and willfully withhold the public records sought here in violation of the TPRA such that Petitioner-Appellant should be awarded reasonable attorneys' fees and costs pursuant to Tenn. Code Ann. § 10-7-505(g) for both the proceedings before this Court, the Court of Appeals, and the trial court?

Suggested answer: Yes.

DATE OF JUDGMENT AND WHETHER A PETITION FOR REHEARING WAS FILED

The Court of Appeals entered judgment and filed its opinion in

this case on March 11, 2024.[1] Mr. Perrusquia did not file a petition for rehearing.

FACTS RELEVANT TO THE QUESTIONS PRESENTED

A. Mr. Perrusquia's public records request and Respondent-Appellees' denials.

The genesis of this case was Petitioner-Appellant Jose Marcus Perrusquia's public records requests to the Sheriff and DA[2] for, among other things, video of an altercation between Memphis police officer Brandon Jenkins and an arrestee, Nechoe Lucas, in the Shelby County Jail Sally Port. R. v. 1 at 7, 133, v. 2 at 159 (request to Sheriff); R. v. 1 at 10–11, 135–36, v. 2 at 183, 189 (request to DA).[3] According to public records from the Memphis police department:

> [a]t one point during the video it clearly shows the suspect sitting in a chair in the sally port. Each arm[] is handcuffed to an arm rest on the chair.

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[1] The judgment and the Westlaw version of the opinion of the Court of Appeals are included in the attached Appendix.

[2] Both the Sheriff and the DA are being sued in their official capacities. Mr. Mulroy was substituted for his predecessor under whom the established facts in this case took place. R. v. 3 at 319.

[3] Cites to the appellate record are formatted as "R. v.," followed by the applicable volume number and page number.

> The suspect spits a mouthful of fluids and bloody spittle on Officer Jenkins. Officer Jenkins responds by kicking the suspect in the face. Officer Jenkins punches the suspect several times in the head. The other officers stop Officer Jenkins.
>
> Officer Jenkins then kicks the suspect in the head one more time.

R. v. 1 at 4, v. 2 at 151.

Officer Jenkins was suspended without pay for 17 days for violating the department's rules regarding excessive/unnecessary force and personal conduct. R. v. 1 at 5, v. 2 at 149. The Sheriff investigated Officer Jenkins for possible assault for his actions. R. v. 1 at 6–7, 145, v. 2 at 165, 170, 173–74. Once that investigation was complete, the Sheriff sent a copy of his investigative file, including the requested video, to the DA for possible prosecution. R. v. 1 at 9–10, v. 2 at 189, 235, v. Tr. at 37:15-21. The DA declined to prosecute Officer Jenkins, but Mr. Lucas pled guilty to assault for his part in the altercation. R. v. 1 at 9–10, v. 2 at 189, 235 (DA declining to prosecute Officer Jenkins); R. v. 1 at 5, v. 2 at 189, 224, 234 (noting that Lucas pled guilty to assault).

The Sheriff denied Mr. Perrusquia's public records request, claiming that "[t]he video is not being provided as that is protected by the security of governmental buildings and surveillance provisions of the TPRA, T.C.A. § 10-7-504." R. v. 1 at 7, 133–34, v. 2 at 158. The DA denied the request because he had not retained the video after receiving

and[4] reviewing it to make a charging determination; the DA had returned the video to the Sheriff. R. v. 1 at 11, 136, v. 2 at 183, 191.

Mr. Perrusquia urged the DA to retrieve the requested video from the Sheriff so that the DA could provide it to Mr. Perrusquia, but the DA declined. R. v. 1 at 12–13, 136–37, v. 2 at 198 (Mr. Perrusquia asking DA to get video back from the Sheriff); R. v. 1 at 13, v. 2 at 197 (DA declining Mr. Perrusquia's request to obtain video from Sheriff). In his denial of Mr. Perrusquia's retrieval request, the DA further explained that, as a matter of course, the DA's office does not retain records it receives and reviews from other agencies:

This Office regularly discusses and reviews cases with various law enforcement agencies within this jurisdiction in determining pre-arrest and pre- indictment charging decisions. During the course of this review, this Office may access and review records of the law enforcement agency. Typically, this Office does not retain those records. The brief temporary review of another agency's records does not typically warrant such retention as a part of this Office's function. This is not the type of activity envisioned by the legislature in the

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[4] Because the show cause hearing transcript is not paginated in the same way as the rest of the record, citations to the transcript are cited as "R. v. 4" with the page of the transcript as "Tr. at" and, when applicable, the lines cited.

application of the [TPRA]. R. v. 1 at 13, 137, v. 2 at 197. 5[5]

B. The trial court proceedings.

Mr. Perrusquia filed suit under the TPRA 6 in Shelby County Chancery Court against both the Sheriff and the DA for their denial of his public records requests. R. v. 1 at 1–20. In his suit, Mr. Perrusquia sought access to the requested video from both the Sheriff and the DA and sought prospective injunctive relief against the DA requiring "the DA's Office to retain copies of all records it receives as part of its decision- making process regarding whether to criminally prosecute persons alleged to have committed a crime." R. v. 1 at 14–19. Mr. Perrusquia also sought an order granting reasonable costs and attorneys' fees pursuant to Tenn. Code Ann. § 10-7-505(g). Id. at 19.

In response to Mr. Perrusquia's suit, both the Sheriff and the DA asserted that they were not required to produce the requested video pursuant to Tenn. Code Ann. § 10-7-504(m). R. v. 2 at 222–26, 238–40. The DA further argued that Tennessee law did not require the DA's office to retain a copy of the Sheriff's investigative file, including the requested video, that the DA received and reviewed in deciding not to charge Officer Jenkins. Id. at 240–44.

Tenn. Code Ann. § 10-7-504(m)(1) provides that records "directly related to the security of any government building" are exempt from disclosure under the TPRA. Tenn. Code Ann. § 10-7-504(m)(1)(E),

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[5] The DA confirmed this practice in an affidavit filed with the trial court. R. v. 2 at 250.

however, specifically provides that segments of government building surveillance recordings "may be made public when they include an act or[6] incident involving public safety or security or possible criminal activity." Mr. Perrusquia argued that this exception to the exemption required disclosure of the requested video because it plainly depicted an act or incident of not just "possible," but actual criminal activity as evidenced by Mr. Lucas's guilty plea to assault. R. v. 1 at 31–34, v. 2 at 257–61.

Both the Sheriff and the DA argued that the use of the word "may" in Tenn. Code Ann. § 10-7-504(m)(1)(E) gave the government discretion to deny requests for surveillance video segments that showed possible criminal activity. R. v. 2 at 222–26, 238–40. Neither the Sheriff nor the DA's affiants indicated that they had reviewed the video in question and both, implicitly or explicitly, explained that their offices would not release any surveillance video from the jail complex as a matter of course. R. v. 2 at 231–33 (declaration for Sheriff from Assistant Chief Jailer averring "significant security concerns in releasing surveillance video from inside Jail property"); R. v. 2 at 249–51 (DA affiant stating he had "not personally reviewed the contents of the surveillance video" at issue and that "[i]f this Office had maintained this video ... this Office would deny a Public Records request for such video").

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[6] Mr. Perrusquia also brought suit pursuant to Tenn. Code Ann. § 1-3-121. R. v. 1 at 1, 3.

The trial court denied Mr. Perrusquia's Petition, finding that Tenn. Code Ann. § 10-7-504(m)(1)(E) gave the Sheriff and DA discretion to choose whether to release segments of government building surveillance recordings showing possible criminal activity. R. v. 3 at 319. The trial court further held that the DA was not required to retain the copy of the video it received and reviewed in deciding not to charge Officer Jenkins because the DA was not the video's records custodian. Id. at 319–20.

C. The Court of Appeals' decision.

Mr. Perrusquia timely appealed and preserved the issues for which review is sought here. R. v. 3 at 324–26 (notice of appeal); Perrusquia's Initial Br. at 7–8. In affirming the trial court's decision, the Court of Appeals based its decision of whether Tenn. Code Ann. § 10-7-504(m)(1)(E) required the Sheriff and DA to disclose the requested video on an excerpt of the legislative history that was not briefed by any party or discussed at oral argument. Perrusquia v. Bonner, No. W2023-00293- COA-R3-CV, 2024 WL 1026395, at *7–11 (Tenn. Ct. App. Mar. 11, 2024). The Court of Appeals also denied Mr. Perrusquia the injunctive relief he requested, including the forward-looking injunction that would require the DA to retain all material he receives and reviews in making a charging decision, including when that decision is to not prosecute. Id. at *11–17. In so holding, the Court relied on the limitation set forth in Tenn. Code Ann. § 10-7-503(a)(4), which does not require governmental entities to "create or recreate a record that does not exist." Id. at *12–17. The Court of Appeals did not

directly address whether the DA was a "records custodian" of the requested video, but did affirm the trial court's decision, which expressly found that the DA was not a records custodian of the requested video under the TPRA. Compare Perrusquia, 2024 WL 1026395, at *17 (affirming trial court's decision denying requested injunctive relief) with R. v. 3 at 320 ("The Court further declines to obligate the DA to become a records custodian of another governmental entity's record by merely reviewing the record to determine whether or not to pursue criminal prosecution.").

STANDARD OF REVIEW

The Court's standard of review is de novo, "giving no deference to the lower court decision" because the issues presented are ones of statutory interpretation, which are questions of law. In re Kaliyah S., 455 S.W.3d 533, 552 (Tenn. 2015) (citing Lind v. Beaman Dodge, Inc., 356 S.W.3d 889, 895 (Tenn. 2011)). The question of an award of reasonable costs, including attorneys' fees, pursuant to Tenn. Code Ann. § 10-7-505(g), is reviewed for an abuse of discretion. Friedmann v. Marshall Cnty., 471 S.W.3d 427, 437 (Tenn. Ct. App. 2015).

The TPRA also "shall be broadly construed so as to give the fullest possible public access to public records." Tenn. Code Ann. § 10-7-505(d). Consistent with this mandate, courts should also construe TPRA exemptions narrowly. See, e.g., Home Builders Ass'n of Middle Tenn. v. Williamson Cnty., 304 S.W.3d 812, 817 (Tenn. 2010) ("[S]tatutes of taxation are to be strictly construed against the taxing authority and,

therefore, liberally construed in favor of the taxpayer .... Where there is doubt as to the meaning of a taxing statute, the doubt must be resolved in favor of the taxpayer." (quoting Memphis Peabody Corp. v. MacFarland, 365 S.W.2d 40, 42–43 (Tenn. 1963)); Lightbourne v. McCollum, 969 So. 2d 326, 332–33 (Fla. 2007) (holding that Florida's public records act "is to be construed liberally in favor of openness, and all exemptions from disclosure are to be construed narrowly" (citation omitted)); Ark. Dep't of Health v. Westark Christian Action Council, 910 S.W.2d 199, 201 (Ark. 1995) (holding that "[i]n conjunction with" Arkansas's requirement that its public records law be "liberally construe[d]," the Arkansas Supreme Court "narrowly construe[s] exceptions to the FOIA to counterbalance the self-protective instincts of the government bureaucracy" (citations omitted))).

SUMMARY OF REASONS SUPPORTING REVIEW

This case involves issues of statutory interpretation, two of which are matters of first impression in Tennessee. Review is warranted due to the significant questions of law and public interest presented by this application, the need to secure uniform decisions, and the opportunity to develop Tennessee law in this important area.

The TPRA is a critical tool for good self-governance. Whether a government agency may decide to withhold segments of surveillance recordings of its facility when those recordings show an act or incident involving public safety or security or possible criminal activity affects every government building with surveillance recordings in Tennessee—

not just the Shelby County jail. A ruling here would also aid proper interpretation of the next sentence of the applicable provision. As such, the first question presents an important question of law and public interest that merits review.

There are, likewise, significant questions of law and public interest inherent in the second question presented, which asks whether the DA is a custodian of all records received and reviewed to make a charging decision and, if they are, is prospective injunctive relief warranted to prevent disposal of such public records in the future by the DA. A decision from this Court on these issues would inform every government official and entity as to whether they are custodians of public records they receive while conducting the public's business. Similarly, whether the DA is required to retain records received and relied upon in deciding not to prosecute impacts public oversight of not just Mr. Mulroy, but every Tennessee District Attorney General ("DAG").

The third question presented also raises important questions of law and public interest regarding the proper test for awarding reasonable costs and attorneys' fees under the TPRA, which have not been addressed by the Court since 2007.

Review of the questions presented is also necessary to secure uniformity of decisions in Tennessee. The Court of Appeals ignored the applicable test for determining how to interpret "may" in Tenn. Code Ann. § 10-7-504(m)(1)(E), and it overlooked a critical component of the test it applied instead. Furthermore, the Court's decision that the DA is

not a records custodian of the requested video is inconsistent with this Court's decisions interpreting the TPRA's definition of a "public record."

Finally, the first two issues presented for review include matters of first impression, which provide this Court an opportunity to significantly develop the law on the TPRA with broad application. As such, Mr. Perrusquia respectfully requests that the Court grant his Rule 11 application to address the important questions his case presents.

REASONS SUPPORTING REVIEW

I. This Court's interpretation of the contested TPRA provisions would settle important questions of law and public interest with far-reaching implications for the public and its government. A. While not every public records case merits review by this Court, public records cases are generally of heightened legal and public interest. The right to inspect public records is one enjoyed by every

Tennessee citizen. Tenn. Code Ann. § 10-7-503(a)(2)(A). This Court has repeatedly explained the critical role that access to public records, through the TPRA, plays in Tennessee. "The Public Records Act reflects the legislature's effort to create legislation that advances the best interests of the public." State v. Cawood, 134 S.W.3d 159, 167 (Tenn. 2004). "Facilitating access to governmental records promotes public awareness and knowledge of governmental actions and encourages governmental officials and agencies to remain accountable

to the citizens of Tennessee." Schneider v. City of Jackson, 226 S.W.3d 332, 339 (Tenn. 2007) (citing Memphis Publ'g Co. v. Cherokee Child. & Fam. Servs., Inc.,[7] e.g., Ballard v. Herzke, 924 S.W.2d 652, 657 (Tenn. 1996) ("[W]e granted permission to appeal to clarify these important issues relating to ... public records."); Memphis Publ'g Co. v. City of Memphis, 871 S.W.2d 681, 683–84 (Tenn. 1994) (granting review "to address these important issues" regarding the TPRA).

That is not to say that this Court should take every public records case for which review is sought, but the overall importance of access to public records is a starting point. Here, that importance is magnified by the specific significant questions of law and public interest posed by Mr. Perrusquia's application, which all support this Court's review.

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[7] S.W.3d 67, 74–75 (Tenn. 2002)); see also Cherokee Child. & Fam. Servs., S.W.3d at 74 (the TPRA "serves a crucial role in promoting accountability in government through public oversight of governmental activities" (citation omitted)). In sum, access to public records is critical to self-governance. Consistent with these rulings, this Court has not hesitated to take on numerous questions involving the TPRA's proper interpretation because they raise important questions of law and of public interest. See,

A. Whether segments of surveillance videos from government buildings showing possible criminal activity must be released under the TPRA is an important question of law and public interest.

Surveillance equipment is ubiquitous in Tennessee's government buildings. From courthouses to jails and town halls to police stations, cameras and the like are used to help secure public facilities. With the prevalence of surveillance equipment in Tennessee's government buildings, whether the public has a right to access segments of surveillance recordings that include an act or incident involving public safety or security or possible criminal activity is an important question of law and public interest that will almost certainly impact every county in Tennessee.

Under the Court of Appeals' decision, there is no requirement under Tennessee law that a government entity release video of a police officer possibly assaulting a restrained arrestee, like here; or video of corrections officers allegedly beating an inmate to death, like in the case of Gershun Freeman; 7 or video of a county official stealing government equipment, as hypothesized by Senator Herron in the excerpted legislative history cited by the Court of Appeals, Perrusquia, 2024 WL 1026395, at *9; or video of an attack on a public employee or official. There are untold other examples of incidents or acts of public safety or security or possible criminal activity that could occur in Tennessee government buildings that the public would have no right to access and view under the Court of Appeals' decision. Such a result undeniably will

impede public oversight and government accountability, which are significant issues of law and public interest with far-reaching implications. 7 The Sheriff refused to release the recordings related to Mr. Freeman's death. Katherine Burgess, Shelby County Sheriff's Office Won't Release Video of 'Altercation' Before Inmate's Death, Commercial Appeal (Feb. 16, 2023), https://www.commercialappeal.com/story/news/local/2023/02/16/sheriffs-office-wont-release-video-of-altercation-leading -to-inmates-death/69907576007/. Edited versions of the videos were eventually released by the investigating district attorney general. Lucas Finton, Footage From Jail Shows Officers Kneeling On Gershun Freeman's Back For Almost 6 Minutes, Commercial Appeal (Mar. 2, 2023), https://www.commercialappeal.com/story/news/2023/03/02/video-released-of-shelby-county-jail-officers-beating-inmate/69964005007/. The Sheriff claimed that the release by the investigating district attorney general was illegal. Bill Dries and Samuel Hardiman, Bonner Claims Freeman video Release Was Illegal And Politically Motivated, Daily Memphian (Sept. 21, 2023), https://dailymemphian.com/article/38633 /bonner-claims-freeman-video-release-was-illegal. In fact, a core concern of the legislators who added the first sentence of Tenn. Code Ann. § 10-7-504(m)(1)(E) was the potential for cover-ups of misconduct by government officials. On the floor of the Senate, Senator Herron, who co-sponsored the amending language to add "possible criminal activity" to the provision, explained that "what we want them to be able to do, indeed, is to film and to release information

that would reveal possible criminal activity. We don't want to [] cover up [for] folks, we don't want to make that secret." Hearing on HB0703 Before the Tennessee Senate, 106th Gen. Assembly, at 06:23–06:34 (June 16, 2009), available at https://tnga.granicus.com/player/clip/1683?view_id=77&met a_id=27778&redirect=true. Similarly, the House sponsor explained that Amendment 1, which added the first part of the first sentence of what became Tenn. Code Ann. § 10-7-504(m)(1)(E), "clarifies it up, the press association and I agree totally . . . if any acts happen[] in the courthouse, we don't want that to be private. That would be released on a video." Hearing on HB0703 Before the Judiciary Committee, Tenn. House of Representatives, at 58:32–58:49 (Apr. 1, 2009), available at https://tnga.granicus.com/player/clip/925?view_id=77&meta_id=9310&r edirect=true ; see also id. at 59:20–59:29 ("The amendment covers if there is a fight or an incident takes place that the press would be able to get that copy of the video footage . . . .").

Unfortunately, government is not always as forthcoming as the public might hope, especially when transparency reveals behavior that may paint government officials in an unflattering light or lead to calls for reform. Under the Court of Appeals' decision, the choice whether to release—or cover up—surveillance recordings that show acts or incidents involving public safety or security or possible criminal activity is left to the governmental body that has custody of the recording. Review by this Court would definitively answer whether that was the

General Assembly's intent in passing Tenn. Code Ann. § 10-7-504(m)(1)(E).

B. This Court's interpretation of the first sentence of Tenn. Code Ann. § 10-7-504(m)(1)(E) is needed to avoid the absurd inference that government bodies need not comply with court orders and subpoenas for surveillance footage.

A decision from this Court would also help shed light on the proper interpretation of the use of "may" in the second sentence of Tenn. Code. Ann. § 10-7-504(m)(1)(E). That provision states: "if the recordings are relevant to a civil action or criminal prosecution, then the recordings may be released in compliance with a subpoena or an order of a court of record in accordance with the Tennessee rules of civil or criminal procedure." Tenn. Code. Ann. § 10-7-504(m)(1)(E) (emphasis added). As it stands now, the Court of Appeals' decision suggests that the identical use of "may" in the second sentence of Tenn. Code. Ann. § 10-7-504(m)(1)(E) grants governmental entities unlimited discretion to decide whether to release government building surveillance recordings in response to a subpoena or court order. Review by this Court is thus necessary to develop the law to avoid that absurdity.

C. Whether DAGs must retain all materials they receive and review in making charging decisions, even when they decide not to prosecute, is an important question of law and public interest.

1. Review of the second question will impact every record custodian in Tennessee.

The Court of Appeals erroneously rejected Mr. Perrusquia's request for present and prospective injunctive relief. Perrusquia, 2024 WL 1026395, at *12. In rejecting his request for forward-looking injunctive relief, the appellate court let stand the trial court's decision that the DA was not a "records custodian" of the video he received from the Sheriff and reviewed in declining to charge Officer Jenkins. R. v. 3 at 320; see also R. 3 at 317 (trial court holding that the Sheriff "delivered its investigate vile[sic] to the DA ... for review for possible prosecution"). The second question raised by this application thus asks this Court to elucidate who is a "records custodian" under the TPRA, which impacts not just the DA, but every government entity and official who receives records from another Tennessee governmental entity or official.

The TPRA defines a "[r]ecords custodian" to be "any office, official, or employee of any governmental entity lawfully responsible for the direct custody and care of a public record." Tenn. Code Ann. § 10-7-503(a)(1)(C) (emphasis added). The trial court found the Sheriff to be a records custodian of the requested video but not the DA, despite the DA receiving it in connection with his official duties. See

Tenn. Code Ann. § 10-7-503(a)(1)(A) (defining "public records" to include all material "received ... in connection with the transaction of its official business by any governmental entity"). The crux of the trial court's decision, affirmed by the Court of Appeals, is that it declined "to obligate the DA to become a records custodian of another governmental entity's record by merely reviewing the record to determine whether or not to pursue criminal prosecution." R. v. 3 at 320.

Those decisions conflict with the TPRA's definition of "records custodian," which does not contemplate a sole records custodian and is not limited to the originating governmental entity. The definition necessarily includes both the originating governmental entity as well as all receiving governmental entities. A simple example highlights the flaws in the decisions below. Under the decisions in this case, only the sender of an inter- or intra-agency email would be the records custodian of that email; the recipient would have no legal responsibility for retaining it and would have no obligation to produce the email in response to a public records request. And city, county, and state officials would have license to dispose of public records they receive from other governmental entities with impunity. Thus, under the decisions in this case, not only will public records requesters be denied access to records (because the entity is a recipient and/or because the entity disposed of the records), requesters will also be unable to seek to prevent future unauthorized dispositions through prospective injunctive relief. The result will be a public records shell game with governmental entities free to dispose of records through destruction or by transferring them to

a prior governmental entity, which may not have the same retention requirements under Tennessee law.

This, by itself, is a sufficiently important question of law and public interest to warrant review by this Court because it implicates the public records retention and access requirements for practically every governmental entity or official in Tennessee.

2. The question of whether a DAG is a records

custodian for all material that they receive and review in making a charging decision is critically important for public oversight.

DAGs are elected, constitutional officers 8 charged with prosecuting criminal cases in their district. This Court has explained, "[i]n a very real sense this is the most powerful office in Tennessee today. Its responsibilities are awesome; the potential for abuse is frightening." Dearborne v. State, 575 S.W.2d 259, 262 (Tenn. 1978) (citing Pace v. State, 566 S.W.2d 861, 866 (Tenn. 1978) (Henry, C.J. concurring)). DAGs are "answerable to no superior and [have] virtually unbridled discretion in determining whether to prosecute and for what offense." Id. (quoting Pace, 566 S.W.2d at 867); see also Ramsey v. Town of Oliver Springs, 998 S.W.2d 207, 209 (Tenn. 1999) ("The District Attorney General's discretion to seek a warrant, presentment, information, or indictment within its district is extremely broad and subject only to certain constitutional restraints." (citing State v. Superior Oil, 875 S.W.2d 658, 660 (Tenn. 1994)). Two of the few checks

on the near unbridled authority exercised[89] by DAGs and the concomitant potential for abuse are public accountability and elections.

Access to DAG public records, provided by the TPRA, is thus a critical oversight tool for every one of Tennessee's 32 DAGs. The Court of Appeals' decision permits DAGs across Tennessee to receive, review, and rely upon law enforcement and other records to make a charging decision and then, if they decline to prosecute, dispose of all those records as they see fit without repercussions. Without review, the decision below thus limits the public's ability to evaluate cases a DA declines to prosecute—a critical component of the job. Here, the public has been stymied from learning about the DA's decision-making when a law enforcement officer was accused of assaulting a prisoner. 10 10 This is an important question of law and public interest for another reason: it has become more common for DAGs to revisit prior charging decisions, especially when a new DA is elected. See, e.g., Praighten Harkins, Prosecutors Reopen Investigation into Fatal Police Shooting of

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[8] "An Attorney for the State for any circuit or district, for which a Judge having criminal jurisdiction shall be provided by law, shall be elected by the qualified voters of such circuit or district, and shall hold his office for a term of eight years...." Tenn. Const. art. VI, § 5.

[9] State statute grants district attorney generals the authority to "prosecute ... all violations of the state criminal statutes and perform all prosecutorial functions attendant thereto." Tenn. Code Ann. § 8-7-103(1).

Zane James in Cottonwood Heights, Salt Lake Trib. (Feb. 17, 2022), https://perma.cc/5G8N-RHEM; Steve Edler & David D. Kirkpatrick, The Police Killings Were Years Ago. New Prosecutors Are Reopening Cases, N.Y. Times (Nov. 30, 2021), https://nyti.ms/3jmUolY (describing three examples from around the country of prosecutors reviewing prior decisions not to charge law enforcement officers involved in deadly car stops); Karl Vick & Josiah Bates, Minneapolis Police Were Cleared in the Killing of Terrance Franklin. Franklin's Family Says a Video Proves He Was Executed—and Now the Case May Be Reopened, TIME (June. 25, 2021), https://perma.cc/8VFP-VD3F (discussing case where police killed a Black man that was reopened by prosecutor). The lower court's decision impedes access to records previously relied upon to decline prosecution. This Court has explained that "the public has a vital interest in receiving information from public officials about the effective, or ineffective, functioning and performance of the government" because "'[t]he effective functioning of a free government like ours depends largely on the force of an informed public opinion.'" Jones v. State, 426 S.W.3d 50, (Tenn. 2013) (quoting Barr v. Matteo, 360 U.S. 564, 577 (1959) (Black, J., concurring)). Tennesseans should be able to access public records regarding both cases DAGs decide to prosecute and those they do not. Yet under the decisions below, DAGs are not obligated to retain records of the latter if they were received from another governmental entity. Accordingly, if permitted to stand, the appellate court's decision severely undermines

public accountability of DAGs and, as such, presents an important question of law and public interest justifying review.

D. The question regarding recovery of reasonable costs, including reasonable attorneys' fees, raises important questions of law and public interest that support

review.

If the Court grants this application and reverses the Court of Appeals' decision on either of the first two questions presented, the Court will have an opportunity to address an issue it has not opined on since 2007: the standard to obtain an award of reasonable costs, including reasonable attorneys' fees, pursuant to Tenn. Code Ann. § 10-7-505(g). In Schneider, this Court granted and affirmed fee requests under the TPRA and held that "the Public Records Act does not authorize a recovery of attorneys' fees if the withholding government entity acts with a good faith belief that the records are excepted from the disclosure." 226 S.W.3d at 347 (citation omitted). In so holding, this Court explained that "in assessing willfulness, Tennessee courts must not impute to a governmental entity the 'duty to foretell an uncertain juridical future.'" Id. (quoting Memphis Publ'g Co., 871 S.W.2d at 689).

Since Schneider, the Court of Appeals has read that case to mean "that 'willfulness' is not to be measured in terms or 'moral obliquity' or 'dishonest purposes,' but rather, in terms of the relative worth of the legal justification cited by a [governmental entity] to refuse access to records." Friedmann, 471 S.W.3d at 439. This "relative worth" approach

has been applied in the Court of Appeals on multiple occasions. Miller v. City of LaFollette, No. E2023-00197-COA-R3-CV, 2024 WL 263172, at *7 (Tenn. Ct. App. Jan. 24, 2024); Conley v. Knox Cnty. Sheriff, No. E2020-01713- COA-R3-CV, 2022 WL 289275, at *5 (Tenn. Ct. App. Feb. 1, 2022); Jetmore v. City of Memphis, No. W2018-01567-COA-R3-CV, 2019 WL 4724839, at *10 (Tenn. Ct. App. Sept. 26, 2019); Taylor v. Town of Lynville, No. M2016-01393-COA-R3-CV, 2017 WL 2984194, at *5–6 (Tenn. Ct. App. July 13, 2017); Clarke v. City of Memphis, 473 S.W.3d 285, 290 (Tenn. Ct. App. 2015). Review here would provide this Court with an opportunity to address the appropriate standard for recovery of reasonable costs, including reasonable attorneys' fees, which is a significant issue of law and public interest at issue in every TPRA case in which government improperly withholds public records from a requester.

II. Review is necessary to secure uniformity of decisions because the Court of Appeals' decision is inconsistent with pertinent case law from this Court.

A. The Court of Appeals disregarded this Court's precedent regarding the proper tests for interpreting "may," as applied to Tenn. Code Ann. § 10-7-504(m)(1)(E).

As this Court has stated, "[i]n statutory construction the word 'may' is frequently construed to mean 'shall.'" Fiske v. Grider, 106 S.W.2d 553, 555 (Tenn. 1937). The Court of Appeals' decision conflicts

with this Court's tests to ascertain whether that is the case: the decisions in City of Memphis v. Bethel, S.W. 191, 195 (Tenn. 1875) and Stiner v. Powells Valley Hardware Co., S.W.2d 406, 407 (Tenn. 1934). Pursuant to those decisions, and properly applying the tests set forth therein, the word "may" in the first sentence of Tenn. Code Ann. § 10-7-504(m)(1)(E) requires the government to release segments of government building 11

The current version of Black's Law Dictionary includes as a definition for "may" "Loosely, is required to; shall; must." MAY, Black's Law Dictionary (11th ed. 2019).[10] surveillance recordings depicting acts or incidents involving public safety or security or possible criminal activity. As such, review of the Court of Appeals' decision is necessary to secure uniformity of decisions regarding how to interpret "may" in statutes.

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[10] On at least two occasions in the last twenty-five years, the Court of Appeals has found that "may" is a mandate. Dunn v. Knox Cnty. Sheriff's Dep't Merit Sys. Council, No. E200400384COAR3CV, 2005 WL 990570, at *7 (Tenn. Ct. App. Apr. 28, 2005) ("[T]he use of the word 'may' in Section 9.4 is imperative rather than permissive." (citing Baker v. Seal, 694 S.W.2d 948, 951 (Tenn. Ct. App. 1984))); Robinson v. Fulliton, 140 S.W.3d 312, 321, 324 (Tenn. Ct. App. 2003) (holding that use of "may" in wiretap statute remedy section "does not give the trial court the discretion to refuse an award of damages if a violation of the Act has been proven") (Kirby, J.).

1. The Court of Appeals ignored the most pertinent test, set forth in Bethel, for deciding whether the word "may" in Tenn. Code Ann. § 10-7-504(m)(1)(E) affords the Sheriff and the DA discretion whether to release the requested video.

In Bethel, which was neither cited nor relied upon by the Court of Appeals, this Court set forth a canon of statutory interpretation for laws applying to public officers, like the TPRA:

The conclusion to be deduced from the authorities is that where power is given to public officers, ... whenever the public interest or individual rights call for its exercise, the language used, though permissive in form, is in fact peremptory. What they are empowered to do for a third person, the law requires shall be done. The power is given, not for their benefit, but for [the public's]. *** In all such cases it is held that the intent of the legislature, which is the test, was not to devolve a mere discretion, but to impose a positive and absolute duty. Bethel, S.W. at 195 (citing Bd. of Supervisors of Rock Island Cnty. v. United States ex rel. State Bank, U.S. 435, 446–47 (1866)).[11] The Bethel test plainly applies to this case because the power to release surveillance footage in Tenn. Code Ann. § 10-7-504(m)(1)(E) is not one given for the government's benefit, but instead for both the benefit of the public

[11] The Court of Appeals has espoused the same principle, but in the negative. Baker, 694 S.W.2d at 951 (explaining that "may" is generally discretionary, "especially where the act to be done does not affect third persons and is not clearly beneficial to them, or the public generally." (citation omitted)).

and individuals to whom the General Assembly granted the right of access. Tenn. Code Ann. § 10-7-503(a)(2)(A) (granting right to inspect public records to "any citizen of this state"); Tenn. Code § 10-7-505(a) (granting right to sue for denial of a public records request to "[a]ny citizen of Tennessee"); Cawood, 134 S.W.3d at 167 ("The Public Records Act reflects the legislature's effort to ... advance[] the best interests of the public.").

Despite its age, Bethel has not been overruled and is hardly an outlier. The Bethel test is derived from a U.S. Supreme Court decision that adopted a rule recognized in caselaw dating back to eighteenth century England. For example, in The King and Queen v. Barlow, Salkeld, 609, an English decision from 1718, 14 the court held that "when a statute directs the doing of a thing for the sake of justice or the public good, the word may is the same as the word shall." Board of Supervisors,[12][13] conferring power upon a public officer, and the public or third persons have an interest in the exercise of the power, then the exercise of the power is usually deemed imperative." (citations

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[12] U.S. at 446 (emphasis in original). The Bethel test from Board of Supervisors is also not a relic lost to history. The same test has been used multiple times in the last 60 years across the country to find that "may" in statutes confers a mandate upon a public official. See, e.g., Syverson, Rath & Mehrer, P.C. v. Peterson, 495 N.W.2d 79, (N.D. 1993) ("When the directory word 'may' is used in

[13] A copy of this decision is available in Hein Online.

omitted)); Schwanda v. Bonney, 418 A.2d 163, 167 (Me. 1980) ("[I]t is an accepted principle of statutory construction that, when the word 'may' is used in imposing a public duty upon public officials in the doing of something for the sake of the public good, and the public or third persons have an interest in the exercise of the power, then the word 'may' will be read 'shall,' ... " (citation omitted)); Great N. Nekoosa Corp. v. Bd. of Tax Assessors of Early Cnty., 261 S.E.2d 346, 348 (Ga. 1979) (finding that use of "may" in statute was mandatory because, among other things, "in statutory construction 'may' is construed as mandatory 'when such Statute concerns the public interest, or affects the rights of third persons'" (citations omitted)); State ex rel. Robinson v. King, 522 P.2d 83, (N.M. 1974) ("[W]here a public officer is clothed with power in permissive form to perform an act in which the interests of the public are concerned, the permissive language will be construed as mandatory."); Moore v. Buchko, 154 N.W.2d 437, 439–41 (Mich. 1967) (relying on Board of Supervisors, among others, to hold that "may" used in a statute regarding credit for time served in prison was mandatory).

In fact, the rule lives on in a leading treatise on statutory construction, which explains that "statutes usually are mandatory where they provide that public officers do certain acts or exercise certain power or authority and private rights or the public interest require the doing of such acts or the exercise of such power or authority, whether they are phrased in imperative or permissive terms." 3

Shambie Singer, Sutherland Statutes & Statutory Construction § 57.12 (8th ed.) (citations omitted). 15

The Court of Appeals' decision, which failed to apply the Bethel test to the "may" in Tenn. Code Ann. § 10-7-504(m)(1)(E), is thus at odds with this Court's precedent, and review is warranted to secure uniformity of decisions in Tennessee.

2. The Court of Appeals' failure to fully apply the Stiner test also conflicts with controlling law of this Court.

The Court of Appeals also failed to apply a critical component of another test from this Court on when "may" is interpreted as mandatory. Specifically, the Court of Appeals wrote, "[i]n determining whether 'may' should be interpreted as being mandatory, 'the prime object is to ascertain the legislative intent, from a consideration of the entire statute, its nature, its object, and the consequences that would result from construing it one way or the other.'" Perrusquia, 2024 WL 1026395, at *8 (quoting Robinson, 140 S.W.3d at 321 (Kirby, J.) (quoting Baker, 694 S.W.2d at 951)). The Robinson and Baker decisions each applied a test enunciated by this Court in Stiner, S.W.2d at 407 (citation omitted). Robinson, 140 S.W.3d at 320–24 (citing

Stiner and holding that "may" in[14] wiretap statute remedy provision was "intended to be mandatory" based on, among other things, extensive legislative history of the provision) (Kirby, J.); Baker, 694 S.W.2d at 951 (citing Stiner). The Court of Appeals did not fully apply the Stiner test because it failed to consider the consequences of construing Tenn. Code Ann. § 10-7-504(m)(1)(E) to grant government entities unbridled discretion to withhold records of surveillance recordings that include an incident involving public safety or possible criminal activity. Accordingly, this Court should grant review to secure uniformity of decisions regarding the proper application of the Stiner test.

When the General Assembly amended the TPRA to add the first sentence of Tenn. Code Ann. § 10-7-504(m)(1)(E), the potential consequences of granting such unbridled discretion was front of mind. What is now Tenn. Code Ann. § 10-7-504(m)(1)(E) began as Amendment 1 to House Bill 703. HB0703 amend 1-0, 106th Gen. Assembly (Tenn. 2009), available at http://www.capitol.tn.gov/Bills/106/Amend/HA0146 .pdf. Before the House Judiciary Committee, the House sponsor explained that the proposed carveout for an "incident

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[14] The Sutherland treatise on statutory construction is regularly relied upon by this Court. E.g., Williams v. Smyrna Residential, LLC, 658 S.W.3d 718, 723 (Tenn. 2024); State v. Deberry, 651 S.W.3d 918, 923 (Tenn. 2022); McFarland v. Pemberton, 530 S.W.3d 76, (Tenn. 2017); Emory v. Memphis City Sch. Bd. of Educ., 514 S.W.3d 129, 144 n.12 (Tenn. 2017) .

involving public safety or security", id, "clarifies it up, the press association and I agree totally ... if any acts happens[sic] in the courthouse we don't want that to be private and that would be released on a video." Hearing on HB0703 Before the Judiciary Committee, supra, at 58:32–58:49. The House sponsor, in response to a question, was unequivocal that if enacted, "the amendment covers if there is a fight or an incident takes place that the press would be able to get that copy of the video footage ... ." Id. at 59:20– 59:28.

In the Senate, an amendment to Amendment 1 of House Bill 703 added the phrase "possible criminal activity" to the end of the pertinent provision. HB0703 amend 1 to amend 1-0, 106th Gen. Assembly (Tenn. 2009), available at http://www.capitol.tn.gov/Bills/106/Amend/SA0497.pdf. On the floor of the Senate, the proponent of Amendment 1 to Amendment 1 explained: "what we want them to be able to do, indeed, is to film and to release information that would reveal possible criminal activity. We don't want to [] cover up [for] folks, we don't want to make that secret." Hearing on HB0703 Before the Tennessee Senate, supra, at 6:23–6:34. In other words, the General Assembly was specifically concerned with the consequences of not permitting access, including the risk of granting government the discretion to withhold security footage and engage in cover-ups. The plain legislative intent was to require public access to segments of government surveillance footage that include acts or incidents involving public safety or security or possible criminal activity.

Even the excerpt of legislative history that the Court of Appeals relied upon, when viewed in full context, supports a conclusion that the General Assembly sought to limit the discretion of records custodians to withhold surveillance video depicting certain types of incidents. Senator Herron asked a series of illustrative questions regarding what would be released as an incident involving public safety or security. Perrusquia, 2024 WL 1026395, at *9. In responding, the sponsor first noted that there was discretion and latitude given to the officials in deciding what is covered by the provision. Id. This limited aspect of the excerpt is what the Court of Appeals erroneously relied upon. But the Court of Appeals ignored the consequence of what would happen, according to the sponsor, if a public records requester disagreed with the decision of a government official regarding whether the exception to the exception applied. The sponsor noted that "[a]nd obviously if someone doesn't like the decision that is made by the county, or the county attorney, then they can take that issue up with the court like they do now." Id.; see also id. at *10 ("So I think we give great discretion to the county to make that determination. And if the folks who are requesting that information obviously don't like it, then they are ... then the discretion would go to the court."); id. ("And I think within that discretion I do believe that our trial courts and our county folks can handle that and be able to deal wisely with that."). In other words, while government officials have discretion, as an initial matter, to determine whether a requested recording "include[s] an act or incident involving public

safety or security or possible criminal activity," that determination is ultimately one for a court to make should a requester bring suit.

The Court of Appeals took a narrow approach, contrary to the requirement of broad construction in Tenn. Code Ann. § 10-7-505(d) and failed to consider the consequences of permitting government records custodians to be the lone arbiter of whether the video here and recordings like it must be released to the public. In so doing, the Court of Appeals' decision is at odds with this Court's decision in Stiner and review is necessary to secure uniformity of decisions in Tennessee.

B. The Court of Appeals' affirmation of the trial court's decision that the DA was not a records custodian of the requested video and denial of the related prospective injunctive relief is inconsistent with this Court's precedent.

In affirming the trial court, the Court of Appeals let stand a finding that the DA was not a records custodian of the requested video. Compare Perrusquia, 2024 WL 1026395, at *16–17 (affirming trial court's decision denying requested injunctive relief) with R. v. 3 at 320 ("The Court further declines to obligate the DA to become a records custodian of another governmental entity's record by merely reviewing the record to determine whether or not to pursue criminal prosecution."). Similarly, the Court of Appeals' decision affirms that the DA is not the records custodian of future records he receives and reviews in making a charging decision. Perrusquia, 2024 WL 1026395, at *12 (denying prospective injunction). The practical result of this

ruling is that the DA and other governmental entities have no legal obligation to retain records they receive in the course of their official business if they received it from another governmental entity. That ruling is inconsistent with a trio of cases from this Court on what "public records" are and when they may be[15] disposed of. Review of this case is thus warranted to secure uniformity of decisions.

A "public record" under the TPRA "means all documents, papers ... or other material, regardless of physical form or characteristics, made or received pursuant to law or ordinance or in connection with the transaction of official business by any governmental entity[.]" Tenn. Code Ann. § 10-7-503(a)(1)(A) (emphasis added). The Court of Appeals essentially ignored the fact that the DA regularly receives public records from other agencies, reviews them in connection with the transaction of the DA's official duties, and then disposes of them by giving them back to the originating agency. R. v. 1 at 13, 137, v. 2 at 197, 250. This Court's jurisprudence, however, demonstrates that the

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[15] There is no question that injunctive relief is proper in TPRA cases, including to prevent future violations. Tenn. Code Ann. § 10-7-505(d) (noting in TPRA cases that "[t]he court ... shall be empowered to exercise full injunctive remedies and relief to secure the purposes and intentions of this section ... ."); Schneider, 226 S.W.3d at 348 (granting injunction and holding "[Tenn. Code Ann. § 10-7-505(d)] plainly and in unambiguous language confers upon courts broad powers to grant injunctive remedies that secure the purposes and intentions of the Public Records Act.").

receipt of records by a state or local governmental entity makes them public records in the hands of the receiving entity. The Court of Appeals' decision is inconsistent with this jurisprudence.

In Griffin v. City of Knoxville, the police took possession of handwritten notes after being called to a home to investigate a shooting death. 821 S.W.3d 921, 924 (Tenn. 1991). The notes were considered by the officers in deciding that the "death was a suicide rather than a homicide," and taken by law enforcement as evidence. Id. The resulting police report indicated that the notes existed and it was the regular practice of the police to collect suicide notes. Id. These facts, among others, were sufficient for this Court to find that the notes were public records because they were received by the police in connection with their official business. Id. Under the Court of Appeals' decision in the instant case, if the police department in Griffin had provided a copy of the notes to the local DAG in connection with that office's work, only the police department—and not the DAG—would be a records custodian of the notes. In addition, if the police department had returned the note to the deceased's family before a TPRA request was made it would not be obligated to produce the record to a requester and, critically, the requester would be unable to obtain injunctive relief to prevent such circumvention in the future.

Three years later, this Court again took up the definition of "public record" in Memphis Publishing v. City of Memphis, 871 S.W.2d 681 (Tenn. 1994). The specific question in that case was "whether ... deposition transcripts, which were taken by counsel for the City and

County in [bankruptcy proceedings] are 'state, county, or municipal records' within the meaning of Tenn. Code Ann. § 10-7-503." Id. at 683. Similar to and relying upon Griffin, among other decisions, the Memphis Publishing Court explained that "[w]ith the proper expansive definition of 'records'," the transcripts were material "'made or received in connection with the transaction of official business'" of both local governmental entities. Id. at 687. Under the Court of Appeals' decision[1617] in this case, however, if the city's counsel was the initial recipient of the transcripts and sent them to the county attorney, only the city's attorney would be the records custodian of the transcripts, and the county attorney would not.

Finally, in State v. Cawood, a former criminal defendant sought "permanent possession" of evidence from his case that was introduced at trial. 134 S.W.3d at 161. The evidence was first found to be a public record. Id. at 165. This Court then explained that giving the former criminal defendant permanent, and exclusive, possession of the evidence was "assuredly, a form of disposal," which was contrary to multiple statutes, including Tenn. Code Ann. § 10-7-509(a). Id. at 165–66. Under the Court of Appeals' decision, if the clerk of court received

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[16] Tenn. Code Ann. § 10-7-503(a)(1)(A) had not been enacted at the time Griffin was decided. Instead, this Court relied on the almost verbatim definition of "public record" in Tenn. Code Ann. § 10-7-301.

[17] Like Griffin, the Memphis Publishing case was decided before Tenn. Code Ann. § 10-7-503(a)(1)(A) was enacted.

copies of the evidence from the local DAG, only the local DAG would be a records custodian required to retain that evidence.

The Court of Appeals' affirming of the trial court's decision that the DA was not a records custodian of the requested video it received from the Sheriff and reviewed in deciding not to charge Officer Jenkins is inconsistent with this Court's decisions in Griffin, Memphis Publishing, and Cawood. It creates an artificial distinction between records received from outside of government with those received from another governmental entity. As such, review of Mr. Perrusquia's second question presented is necessary to bring uniformity to Tennessee's law. III. This case involves two questions of first impression, which provide the Court with an opportunity to develop

Tennessee law on important issues.

Because this Court serves "primarily as a law-development court," State v. West, 844 S.W.2d 144, 146 (Tenn. 1992), and the list of factors in Tenn. R. App. 11(a) is non-exhaustive, review of this case is also warranted because it raises two issues that are of first impression in Tennessee. See, e.g., State v. Burgins, 464 S.W.3d 298, 302 (Tenn. 2015) (noting that issue raised by application was one of "first impression," supporting review by the Court); State v. McCoy, 459 S.W.3d 1, (Tenn. 2014) (same); see also Tennessean v. Elec. Power Bd. of Nashville, 979 S.W.2d 297, 298 (Tenn. 1998) (explaining in TPRA case that the Court "granted this appeal to address two questions of first impression").

The first two questions raised by this application include matters of first impression for this Court and were, when addressed by the Court of Appeals, matters of first impression in that court as well. No Tennessee appellate court had addressed how to interpret Tenn. Code Ann. § 10-7-504(m)(1)(E)'s provisions, including the applicable one involving the release of surveillance videos that, among other things, show possible criminal activity. Nor had any appellate court addressed the definition of a "records custodian" found in Tenn. Code Ann. § 10-7-503(a)(1)(C). These matters of first impression provide this Court with a means to develop the law in Tennessee and thereby support granting this application.

CONCLUSION

For the foregoing reasons, Mr. Perrusquia respectfully requests that this Court grant his application for review of the three questions presented.

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CERTIFICATE OF SERVICE

I hereby certify that a true and exact copy of the foregoing *Petitioner-Appellant's Application for Permission to Appeal Under Tennessee Rule of Appellate Procedure 11* was served through the Court's e-filing system on the 10th day of May, 2024, to the following:

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CERTIFICATE OF COMPLIANCE

In accordance with Tenn. Sup. Ct. R. 46, § 3.02, the total number of words in this brief, excluding the cover page, Table of Contents, Table of Authorities, Certificate of Compliance, attorney signature block and Certificate of Service, is 8,939. This word count is based upon the word processing system used to prepare this brief. The limit under Tenn. R. App. P. 30(e) and Tenn. Sup. Ct. R. 46, § 3.02.1 is 15,000 words.

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